

		The court will hear from the parties at the hearing as to scheduling of a date for the evidentiary hearing and a continued date for the CMC. Defendants shall give notice.
308	<i>Law Offices of Joseph P. McGinley vs. Falck Mobile Health, Inc.</i>	Before the court is an unopposed Motion Directing Interpleading of Funds (Motion) filed by plaintiff Law Offices of Joseph B. McGinley (Plaintiff). The hearing is CONTINUED to July 6, 2026 at 1:30pm. Plaintiff has not filed the subject funds with the court. The Motion is based upon Code of Civil Procedure sections 386 and 386.5. Under those code sections and for the court to grant the Motion, the moving party must provide an affidavit that it was no interest in the funds it seeks to deposit with the court. The affidavit is also required for the party to recover attorney fees under Code of Civil Procedure section 386.6, subdivision (a). The declaration of Joseph B. McGinley does not contain the required statements. The hearing is continued for Plaintiff to file and timely serve a supplemental affidavit that complies with the code. The CMC is continued to 7/6/26 at 1:30pm. Plaintiff shall give notice.
311	<i>Moon vs. TruAbutment Inc.</i>	Before the Court is a motion by Petitioners Peter Moon and Haengoh Kim in which they seek an order entering a judgment on their Petition for Writ of Mandamus To Compel Inspection of Corporate Books and Records. The Petition is GRANTED, in part, and DENIED, in part, as set forth herein. On December 29, 2025, Petitioners filed a Petition seeking an order that Respondents TruAbutment Inc., Hyung T. Park, Sang H. Yoo, Hyung Ick Kim, Stella K. Kim, and Ron Nguyen “produce electronically to Petitioners' attorney's, Cadden &

	Fuller LLP, copies of TruAbutment's share register, accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board, and all documents required to be kept by Corporations Code § 1500, <i>et seq.</i> as authorized by California Corporations Code section 1601.” (Petition ¶1) Petitioners also filed declarations of Peter Moon and Haengoh Kim concurrently with the Petition. On January 27, 2026, Petitioners filed the instant motion to enter judgment. While Petitioners also filed another motion and related documents on May 7, 2026, those documents were not filed with the notice required by the Code. (See Code of Civil Procedure §§ 1005(b) and §1010.6(a)(3)(B).) Accordingly, the Court declines to consider the documents filed May 7, 2026. Turning to the merits, the Court finds Petitioners are entitled to receive electronic copies of the “accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board” from TruAbutment, Inc. (Corporations Code §1601) The Petition to compel TruAbutment, Inc. to provide electronic copies of its accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board for the most recent complete fiscal year is GRANTED. TruAbutment, Inc. is ORDERED to produce the documents upon receipt of Petitioners’ payment of “the reasonable costs for copying or converting the requested documents to electronic format.” TruAbutment, Inc. shall provide Petitioners an estimate of the cost for preparing the documents within 14 days of the date of this order and then TruAbutment, Inc. shall produce the documents within 14 days after receipt of payment from Petitioners.
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		Corporations Code §1603 authorizes the Court to enforce the right of inspection “with just and proper conditions.” Accordingly, the Court ORDERS that for all documents produced, including any information derived therefrom, access to the documents and information shall be permitted only to the Court, Court personnel, Court Reporters, the named parties to this proceeding, current officers, directors or Board Members of TruAbutment, Inc., the parties’ attorneys and their staff, the parties’ experts or consultants or such other persons as the parties agree in writing or the Court orders. It shall be the obligation of the party giving access to the information to ensure that the person receiving the information is provided a copy of this order. Petitioners’ request for a copy of the share register is DENIED. (Petition at 6:4) Petitioners have not established they own at least 5% of TruAbutment’s stock. (Corp. Code § 1600.) The Petition is DENIED as to Respondents Hyung T. Park, Sang H. Yoo, Hyung Ick Kim, Stella K. Kim, and Ron Nguyen. There is no authority cited which would compel the Director Respondents to produce documents pursuant to Corporations Code §1601. The Court does not find the Respondents’ failure to comply with Petitioners’ demand to have been without justification. Accordingly, the Petitioners’ request for attorneys’ fees is DENIED. Petitioners shall prepare a proposed judgment in accordance with this ruling by 6/10/26 and give notice.
313	<i>Motahari vs. Mottahedan</i>	The unopposed motions to be relieved as counsel of record for defendants Mohammad Mottahedan and Sasha Management Incorporated (collectively,